

18 July 2023

Richard Mclean
2 MCCUBBIN STREET
FOOTSCRAY VIC 3011

Dear Richard,

Notice of liability decision for Impairment Benefits claim

Your claim number: IB 09060103251
Employer name: MELBOURNE HEALTH
Injury date: 1 October 2005

I am writing to you about your claim for impairment benefits which we received on 17 July 2023.

In accordance with Division 4 of Part 2 and Divisions 4 and 5 of Part 5 of the *Workplace Injury Rehabilitation and Compensation Act 2013* (the Act), DXC Integrated Services Victoria Pty Ltd (DXC) has reviewed your claim and determined liability for the injuries you have listed as work-related on your *Worker's Claim for Impairment Benefits Form*.

Liability has been rejected for your claim for Impairment Benefits because:

- You did not sustain an injury within the meaning of the Act.
- Your claimed injury did not arise out of or in the course of employment.
- Your employment was not a significant contributing factor to the claimed injury.

You lodged a claim for compensation dated 31 April 2007 for hallucinations, ideas of reference delusion, lethargy, depression and mania.

On 6 June 2007 Allianz issued a rejection letter, which stated:

"You are a 34-year-old male who commenced employment with MELBOURNE METROPOLITAN HEALTH SERVICE in November 2004.

On 10 May 2007, Allianz Australia Workers Compensation received a claim alleging you sustained hallucinations, ideas of reference, delusion, lethargy, depression and mania.

You were medically examined by Dr Turecek on 24 May 2007. Dr Turecek stated...
'The worker's presentation and mental status examination confirm the presence of a Chronic Schizophrenic Illness (Paranoid type). This is a pre-existing illness which started in his early 20's. He has had continuous treatment for his condition.

It was difficult to identify any particular events that had occurred in the course of his work to explain the deterioration some time in 2006. There was no indication from the information that he supplied that his Managers were nothing but helpful in trying to assist him with the tasks of his position. I noted his explanation that he decided to put in his WorkCover claim because of financial need and the advice from a legal representative - on the grounds that his condition had deteriorated in the course of his work. However from the clinical information available, I was not able to clarify any connection between his employment and the deterioration that he described in 2006. I confirm that his condition has required long term psychiatric attention and treatment. He has been under the care of his treating psychiatrist on regular basis and a number of antipsychotic medications have been tried. From a clinical perspective, there is no clear connection between his current presentation and the difficulties that he experienced in the course of his employment. His prognosis is that of his underlying psychiatric condition.

From a psychiatric perspective, there is insufficient evidence to indicate any connection with his previous employment.'

A Circumstance Investigation Report was obtained from Lyonswood on 4 June 2007. Their report stated...

Candidly, and without hesitation (the claimant) admitted, "My condition was already present before I commenced employment as permanent part-time Consumer Consultant with North West Area Mental Health Service. However, the extreme workload and pressure that I experienced in performance of my duties contributed to exacerbation of my condition, in particular the depression, bipolar disorder and rapid cycle mania." Openly (the claimant) informed us that, prior to commencing work for the insured, "I can advise that I first received treatment for schizophrenia at 22 years of age. Before that I had a long descent into illness, which was exacerbated or contributed to by cannabis use from my mid-teens to age 21 years. In addition, I occasionally used ecstasy while I was employed at the Herald Sun.

The WorkCover Worker's Claim Form which was signed by the Claimant on 31st April 2007 detailed a brain condition involving hallucinations, ideas of reference delusion, lethargy, depression and mania.

The WorkCover Worker's Claim Form stipulated the injury occurred, "during work" and was first noticed in 1994. The WorkCover Worker's Claim Form stipulated the date of his cessation of work in October 2005. The WorkCover Worker's Claim Form stipulated the injury occurred in the course of work, while working in the usual workplace.

The Incident Register contains no entry."

You disputed the rejection of your claim for compensation. On 12 November 2007 the Accident Compensation Conciliation Service issued an outcome certificate advising the dispute could not be resolved and that there was a genuine dispute.

Your Impairment Benefits claim has been rejected in line with your claim for weekly payments and the notice dated 6 June 2007.

What you need to do

Within 60 days of receiving this letter, you must notify DXC in writing, preferably by using the attached *Worker's Response Form*, whether you:

1. Disagree with the liability decision. The options you have available to you are detailed in Appendix One.
2. Agree with the liability decision. You may wish to obtain legal advice before accepting the liability decision as it may prevent you from bringing a common law claim.

If you require assistance

To make a general enquiry or for assistance with disputed claims or regarding the Workplace Injury Commission process, please refer to appendix one and two attached.

Where to get more information

Further information regarding the legislation relevant to your impairment benefit claim is outlined in Appendix Three.

If you have any questions about this letter, please contact me on freecall 1800 801070.

Yours sincerely

Impairment Benefits Specialist
1800 801 070
DXC Integrated Services Victoria Pty Ltd

**On behalf of WorkSafe Victoria
a trading name of the Victorian WorkCover Authority**

Appendix One – Having a decision reviewed

Appendix Two – General enquiries and assistance with disputed claims

Appendix Three – Sections of the Accident Compensation Act 1985 and the Workplace Injury Rehabilitation and Compensation Act 2013 relevant to impairment benefits

Attachment One – Workers Response Form

cc:

**MELBOURNE HEALTH
PO BOX 2155
PARKVILLE VIC 3050**

Appendix One

Rights to apply for conciliation and court review

The WorkCover legislation provides you with the following rights if you dispute any decision to which this notice relates:

1. Apply for Conciliation by the WIC

To apply for conciliation you must send or deliver a completed Application for Conciliation form to the WIC:

- by email to afc@wic.vic.gov.au;
- by mail to the Workplace Injury Commission - GPO Box 251, Melbourne 3001; or
- in person to 215 Spring St, Melbourne 3000

You must send or deliver the form within 60 days of receiving this letter.

If you need more than 60 days to complete the Application for Conciliation form, you can apply for an extension of time during the 60 days by sending the WIC a Request to Extend Time to Lodge an Application for Conciliation form found on the WIC website.

To obtain the above mentioned conciliation forms and to learn more about conciliation visit wic.vic.gov.au or call the WIC on 1800 635 960. Conciliation is a free service.

2. Review by a Court

You may also apply to the Magistrates' Court or the County Court of Victoria to contest a decision. For most disputes, the conciliation process must be completed before you can commence court proceedings. The conciliation process is completed when the Conciliation Officer is satisfied that all reasonable steps have been taken by the claimant to settle the dispute, and a certificate is then issued to that effect. A solicitor can advise you about legal action.

Internal review by DXC

In addition to the legal right of review provided by the WorkCover legislation you may also request DXC to undertake an internal review of the decision in this Notice

As this is not part of the legislated review process, if you request an internal review, you should not delay lodging your dispute with the WIC as the 60 day timeframe commences from the date this notice is received.

To assist with the internal review you should detail why you disagree with the original decision and you may provide any additional information you have which is relevant to the decision. The **reasonable** costs of obtaining that information will be paid by us.

Appendix two - Getting Assistance for your conciliation

There are a number of places you can turn to for assistance with disputes on claims and the Workplace Injury Commission process including:

- **A solicitor** - if you do not have a solicitor, you may wish to phone the Law Institute of Victoria's legal referral service for advice on (03) 9607 9550.
- **Union Assist** - a free and independent service which offers support, guidance and advice. Operated by the Victorian Trades Hall Council. Please call (03) 9639 6144.
- **WorkCover Assist** - a free service provided by WorkSafe Victoria. They offer support and guidance and can simplify the dispute resolution process for you. Please call (03) 9941 0537.
- **Your union** - contact details for unions operating in Victoria are detailed in the table below.

Union	Phone Number
Ambulance Employees Australia	(03) 9235 7675
Association Of Professional Engineers, Scientists And Managers, Australia (APESMA)	(03) 9695 8807
Australasian Meat Industry Employees' Union (AMIEU)	(03) 9662 3766
Australian Education Union Victorian Branch (AEUVB)	(03) 9417 2822
Australian Institute Of Marine And Power Engineers (AIMPE)	(03) 9690 0506
Australian Licenced Aircraft Engineers Association (ALAEA)	(03) 9691 7103
Australian Manufacturing Workers Union (AMWU)	(03) 9230 5700
Australian Nursing Federation (ANF)	(03) 9275 9333
Australian Principals Federation (APF)	(03) 8566 7627
Australian Services Union (ASU) - Victorian Authorities & Services Branch	1300 855 570
- Victorian Private Sector Branch	(03) 9320 6700
Australian Workers Union (AWU)	1300 362 298
Blind Workers Union Of Victoria (BWU Of V)	(03) 8378 1205
Civil Air Operations (CAOOAA)	(03) 9647 9100
Communications, Electrical, Electronic, Energy, Information, Postal, Plumbing And Allied Services Union Of Australia (CEPU)	
- Communications Workers Union (CWU)	(03) 9349 2100
- Electrical Trades Union (ETU)	(03) 8329 0000
- Plumbing Trades Employees Union (PTEU)	(03) 9662 3388
Community and Public Sector Union - PSU Group	1800 137 636
- State Public Services Federation (CPSU/SPSF)	(03) 9639 1822
Construction, Forestry, Mining & Energy Union (CFMEU)	
- Construction & General Division	(03) 9341 3444
- Forestry & Furnishing Products Division (FFPD) - Victorian Forestry District	(03) 9274 9200
- Pulp & Paper Workers' District	
- Mining & Energy Division	(03) 5134 3311
Finance Sector Union Of Australia (FSU)	1300 366 378
Flight Attendants Association Of Australia (FAAA)	1800 733 222
Health Services Union (HSU) Victoria - No 1 Branch	1800 331 974
No 2 Branch - Health and Community Services Union (HACSU)	1300 651 931
No 3 Branch - Health Professionals	(03) 9341 3390
No 4 Branch - Association of Hospital Pharmacists (AHP)	
- Medical Scientists Association of Victoria (MSAV)	(03) 9623 9623
- Victorian Psychologists Association Incorporated (VPA)	
Independent Education Union (IEU)	(03) 9254 1860
Maritime Union of Australia (MUA)	(03) 9329 5477
Media, Entertainment & Arts Alliance (MEAA)	1300 656 512
National Tertiary Education Union (NTEU)	(03) 9254 1930
National Union Of Workers (NUW)	(03) 9287 1777
The Police Association of Victoria (TPAV)	(03) 9468 2600
Professional Footballers Association (PFA)	(03) 9287 1888
Rail, Tram & Bus Union (RTBU)	(03) 9600 3030
Shop, Distributive and Allied Employees' Association (SDA)	(03) 9698 1400
Textile, Clothing And Footwear Union Of Australia (TCFUA)	(03) 9639 2955
Transport Workers Union Of Australia (TWU)	1300 727 614
United Firefighters Union (UFU)	(03) 9419 8811
United Voice	(03) 9235 7777

Appendix three: Sections of the *Accident Compensation Act 1985* and the *Workplace Injury Rehabilitation and Compensation Act 2013* relevant to impairment benefits

ACA 1985	WIRC 2013	Descriptor
Section 91	Division 4 of Part 2	Assessments of impairment
Section 91 (2)	Section 56	Psychiatric impairment does not include any psychiatric impairment arising from or secondary to a physical injury
Section 98C	Division 5 of Part 5	Compensation for non-economic loss
Section 98C(2)	Section 211(2)	The amount of the non-economic loss in respect of physical permanent impairment: (a) Less than 10% whole person impairment (b) (i) 10% and less than 11% modified impairment benefit rating (ii) 10% and less than 11% modified spinal impairment benefit rating (c) (i) 10% to 30% whole person impairment (ii) 10% to 29% whole person spinal impairment (d) 31% to 70% whole person impairment (e) 71% to 80% whole person impairment (f) More than 80% whole person impairment
Section 98C(3)	Section 212	The amount of non-economic loss in respect of psychiatric permanent impairment: (a) Less than 30% whole person impairment (b) 30% whole person impairment (c) 31% to 70% (d) 71% to 80% whole person impairment (e) More than 80% whole person impairment
Section 98C(5)	Section 214(2)	A foetus means the conceptus beyond the sixteenth week of development
Section 98C(6A)	Section 215	If any injury has occurred over time, the date of injury is deemed to be the last day on which a worker was employed performing duties or exposed to conditions which give rise to the injury; or if employment in those duties and exposure to those conditions has ceased, the date the impairment benefit claim was lodged.
Section 98C(7)	Section 217(1)	If a worker suffers on the same occasion more than one injury which entitles the worker to compensation, the worker is not entitled to receive as compensation for non-economic loss more than \$503,000
Section 98C(8)	Section 217(2)	If a worker suffers an injury which entitles the worker to more than one kind of compensation for non-economic loss, the worker is not entitled to receive more than \$503,000
Section 98E	Section 221	Determination of a total loss injury in accordance with the “No Disadvantage – Compensation Table”
Section 104B	Division 4 of Part 5	Claims for compensation under Impairment Lump Sum
Section 104B(2)	Section 201	Determination of liability, assessment of impairment, degree of impairment, determination of total loss injuries, calculation of compensation, notice to the worker
Section 104B(3)	Section 202	A worker may not commence proceedings in relation to the rejection of liability in relation to injuries included in the claim unless the worker has referred the matter to conciliation and the conciliation officer has issued a certificate under the Legislation
Section 104B(6)	Section 205(1)	Worker must accept or dispute the decision as to liability in respect of each of the injuries within 60 days of being advised by the agent
Section 104B(7)	Section 206(1)	Following variation of a decision to reject an injury, the Agent must within 90 days have the accepted injury assessed and provide a determination of the degree of impairment and total loss for that injury to the worker
Section 104B(8)	Section 206(4)	Agents must within 14 days of being advised by a worker that he/she accepts the entitlement to an impairment benefit make a payment of the entitlement
Section 104B(9)	Section 207(1)	Agents must within 14 days of being advised that a worker

		disputes the determination of impairment and/or total loss refer the matter to the Medical Panel for its opinion
Section 104B(12)	Section 208	No appeal lies to any court or tribunal from a determination or opinion as the degree of impairment or whether the worker has a total loss injury from a Medical Panel's opinion
Section 134AB(25)(b)	Section 343(1)(b)	Actions for common law damages and deduction of impairment benefit from pain and suffering damages
Section 104B(2)(c)	Section 201(1)(c)	Determine the degree of combined physical and psychiatric whole person impairment
Section 55	Section 282	Any party to a dispute may refer the dispute for conciliation by a Conciliation Officer

Attachment One - Worker's Response Form

Worker's response to the *Notice of impairment benefit liability, assessment and entitlement*

Return To: DXC Integrated Services Victoria Pty Ltd
LEVEL 19 360 COLLINS STREET
MELBOURNE 3000

OR Fax: dcm-ib.team@dxc.com

Worker name: Richard Mclean
Your claim number: 09060103251

I, Richard Mclean, understand this, **Notice of Liability Decision for my Impairment Benefits Claim** dated 18/07/2023 and respond as follows:

1. Response to the liability decision

☐ I ACCEPT	☐ I DISPUTE
<i>If you accept, your claim for impairment benefits will be finalised.</i>	<i>You must refer the dispute to Conciliation. For information about the dispute process, please refer to Appendix One.</i>
Signed: _____ Date: _____	